

Calendar Line 4

Case Name: Santa Clara Valley Water District v. San Jose Water Company et al.

Case No.: 26CV488397

Plaintiff Santa Clara Valley Water District's motion for order of prejudgment possession in an eminent domain proceeding. (Code Civ. Proc., § 1255.410.) Notice is proper and the motion is unopposed. The court approved service by posting and publication of the summons, complaint, this motion, and other documents. Plaintiff has filed a proof of service by posting at the subject property. The proof of service by publication has not been filed yet, but that does not affect the adequacy of the notice for this motion.

An eminent domain plaintiff may move for an order of prejudgment possession (also known as a quick-take procedure). (Code Civ. Proc., § 1255.410 (unspecified statutory references are to this Code); *Robinson v. Superior Court* (2023) 88 Cal.App.5th 1144, 1164 (*Robinson*).) The motion must be served on the record owner of the property, if any, at least 60 days before the hearing on the motion. (§ 1255.410, subd. (b).) If the motion is not opposed, the court "the court shall make an order for possession of the property" if the court finds (1) the plaintiff is entitled to take the property by eminent domain; and (2) the plaintiff "has deposited pursuant to Article 1 (commencing with Section 1255.010) an amount that satisfies the requirements of that article." (§ 1255.410, subd. (d)(1).) "The power of eminent domain may be exercised to acquire property for a proposed project only if all of the following are established: (a) The public interest and necessity require the project[;] (b) The project is planned or located in the manner that will be most compatible with the greatest public good and the least private injury[; and] (c) The property sought to be acquired is necessary for the project." (§ 1240.030; see *Robinson*, at p. 1167 ["an entity with the general authority to condemn will have the right to acquire a particular property using the power of eminent only if the three requirements of section 1240.030 are met."].) A public agency must also adopt a resolution of necessity before acquiring property by eminent domain. (*Robinson*, at p. 1167; § 1240.040.)

Plaintiff's March 2026 motion was timely filed more than 60 days before the June 2026 hearing. (§ 1255.410, subd. (b).) The subject property has neither an address nor an Assessor's Parcel Number. The complaint and motion for prejudgment possession include a legal description of the subject property. (Complaint, ¶ 3; Motion at 4;5-5:12.) Plaintiff adopted a resolution of necessity for the subject property in October 2025, stating the subject property is necessary as part of "flood improvements along approximately 9 miles of Coyote Creek." (Complaint, exh. C.) Plaintiff deposited \$500 with the State Treasurer for the property, an amount determined by an appraisal. (Notice of Deposit, filed 3/13/26, exhs. A & B.) The complaint alleges that plaintiff may already own the subject property because it owns two adjacent parcels (APN 467-13-055 & 467-13-056); defendant San Jose Water Company was named "in an abundance of caution." (Complaint, ¶ 8.) Defendant San Jose Water Company filed a disclaimer in March 2026 in which it "hereby disclaims and claims no interest in the real property described above and in Plaintiffs complaint on file herein, or in the compensation that may be awarded by the Court, or which might otherwise be payable, for the acquisition of any of the real property described in Plaintiffs complaint on file herein." (Disclaimer of Interest, filed 3/27/26, p. 2:17-22.) The court takes judicial notice of the complaint in this matter; the disclaimer of interest; and the notice of deposit. (Evid. Code, § 452, subd. (d).)

Upon review of the record in this case, the court finds by a preponderance of the evidence that: (1) the public interest and necessity require the project; (2) the project is planned or located in a manner that will be most compatible with the greatest public good and the least private injury; and (3) the property sought to be acquired is necessary for the project. Because there has been no opposition and plaintiff has satisfied the two conditions for prejudgment possession described in section 1255.410, subdivision (d)(1), the motion for prejudgment possession is GRANTED. The court will prepare the order.

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